

Committee on Character and Fitness
Arizona Supreme Court
1501 W Washington St, Suite 104
Phoenix, AZ 85007

Addendum to Cure Academic Conduct Omissions

Dear Members of the Committee,

I am appending my Character and Fitness Application to include facts that I inadvertently omitted in my original application. I did not intend to withhold any information from the Committee, and I sincerely apologize for failing to include these items in my original application. I am also providing some background personal information relevant to these omitted incidents.

I realized that I may have omitted relevant information after I met with Dr. Emily Bashah and read her report, which referenced things that I told her about but had not mentioned in my original submission. Simply put, I recounted events in richer detail in conversing with Dr. Bashah than I had written on the form. Upon realizing that I omitted at least one thing, I scrutinized my application for other possible oversights and identified several issues.

First, the form's Academic Conduct question asks:

Have you ever at any time been dropped, suspended, expelled or disciplined by any school, college or university for any cause whatsoever, including scholastic deficiency? This question includes any action taken by a school, college or university, restricting in any way your conduct at that educational institution.

I answered Yes and disclosed having been suspended 14 years ago in my sophomore year of college (October 2011) for one semester for possession of marijuana. When Dr. Bashah queried me about this suspension I told her the full story, including the background, explaining that a

year earlier near the start of my freshman year (September 2010) I had been placed on stayed suspension for smoking marijuana, thus sophomore year was a second offense.

I did not report the freshman year infraction on my original application because no disciplinary action was taken, and my conduct was not restricted. “Stayed suspension” was a warning; it meant that suspension was stayed absent further misconduct that year, and barring such I would remain in good standing. I did not have any further infractions that year, so the school took no action against me. Nonetheless, I see now that I should have recognized this incident was germane and disclosed it.

My renewed attention to the Dickinson suspension and this Academic Conduct question led me to identify two other issues germane to this question. First, I did not disclose that I was placed on academic probation after the first semester (Fall 2018) of my Master of Environmental Management program. Second, I failed to disclose that I was disqualified from ASU Law School after my first year (2020-21) then reinstated prior to beginning my second year.

I have no excuse for either omission. I offer the following merely in explanation. In hindsight, I focused on the disciplinary thrust of the question and overlooked “scholastic deficiency.” In addition, I think these academic mishaps had somewhat faded from memory because both ended up being inconsequential. At Duke, academic probation did not trigger any action or restriction to be imposed but served only as a warning of possible future consequences should I fail to respond appropriately, and I raised my grades the following semester (Spring 2019) and was restored to good standing, which I maintained through graduation. Similarly, here at Arizona State I petitioned for reinstatement soon after receiving the notice, the College mercifully granted it, and I raised my grades and graduated with my class.

My review also led me to spot an issue which is not an omission per se but bears explanation. I noticed a discrepancy between my answers on my old law school application and this application to two similar questions, which ask respectively:

Have you ever been arrested for, charged with, convicted of, pled guilty, or pled no contest to a crime other than a minor traffic violation? (A violation that includes the use of drugs or alcohol is not considered a minor violation.)

Have you either as an adult or a juvenile, ever been served with a criminal summons, questioned, arrested, taken into custody, indicted, charged with, tried for, pleaded guilty to or been convicted of, or ever been the subject of an investigation concerning the violation of any law, statute, ordinance, rule, regulation, or canon? ATTENTION: You are required to disclose any prior conviction, arrest, or charge *regardless of whether it expunged, vacated, dismissed, sealed, or not filed*. Arizona revised Statue § 13-911 specifically permits a court to require this disclosure. In answering the questions, include all incidents, no matter how trivial or minor the infraction or whether guilty or not, whether you believe or were advised that you need not disclose any such instance. Your failure to report accurately will be the subject of investigation and questioning by the Committee on Character and Fitness. (Emphasis added.)

To the first, I responded Yes and disclosed my two convictions for DWAI and DUI in the fall of 2015 in Boulder but omitted the third charge for DUID from 3 January 2016, which was dismissed and sealed. On this Application, I disclosed all three.

Applying to law school five years ago, I thought I did not need to disclose the third charge. My lawyer advised me that I did not need to, and should not, disclose the charge once sealed, and this seemed to me to be corroborated by the court's Order of Seal (I "may properly reply that no such record exists"). On this Application, I thought I should disclose it. The question expressly included dismissed or sealed charges, and even without that admonition I believe I still would have disclosed it because I now appreciate that lawyers are fiduciaries, imbued with public trust, so their licensure implicates public safety.

Lastly, my review prompted me to ascertain that the list of nine jobs I provided in the Employment History section was incomplete, so I added four initially forgotten jobs. Three (Patxi's Pizza, Men's Wearhouse, and Blackjack Pizza) were part-time for brief stints six or seven years ago, and one (Odyssey Tutoring) is actually current but extremely part-time and I guess I think of it more as a hobby than employment. Clearly, I was not assiduous enough in completing the form. Again, I did not intend to conceal information—to the contrary, I shared these issues freely with Dr. Bashah—and I apologize for my oversights.

As I detail this history and read Dr. Bashah's report, I am unpleasantly reminded of my youthful stupidity regarding substance transgressions, and my academic struggles. I would like to share the story underlying this series of dates and events.

I used to be a good student. I began struggling toward the end of high school, having difficulty organizing work on longer-term assignments. In college my disorganization struggles amplified, and I floundered. I would be diagnosed with ADHD four years later, but until then I struggled mightily. Compounding this hidden challenge, I was immature and impulsive when I left for college. I was homesick. I fell into marijuana use as a social medium, without much consideration or cognizance of its adverse impact on my education. After two lackluster years at Dickinson, I withdrew. I transferred to the University of Colorado in 2013. I was happier there. I smoked less. I did better in school. I was diagnosed with ADHD the summer before my senior year, which felt like a turning point. I learned new strategies, and started getting A's again.

Then, just after graduating in 2015, in the blink of an eye I was on probation. A few thoughtless decisions, one after the other, brought my life to a screeching halt. I never drank much. But I was still impulsive. Thoughtless. Sitting in jail, I realized how immature I still was. My string of DUIs was the true, needed, turning point. I finally grew up. It was a long two years

on probation, but also invaluable in learning the accountability I had lacked and in forming better habits. I applied the planning- and routine-centric strategies I had developed the past year to work life. I established consistent personal habits while working productive 50-60-hour weeks. When I got off probation, I was more patient and more deliberate. Since then, I have been primarily focused on studying or working.

Unlike those substance-use issues of the distant past, my ADHD remains a problem which must be actively managed. Getting diagnosed was a turning point because for the first time I knew I had a problem and needed to control it, and I started taking steps to do so. I performed much better that senior year—especially in the Spring and Summer terms, as the habits crystalized. Three years later at Duke, after working blue collar jobs since college, my student skills may have rusted slightly but the bigger problem was my unpreparedness for the quantitative rigor of that master's program.

Law school was where the lesson was really learned. I came to ASU expecting to excel. However, even discounting my troubled first year, I did not. I earned a 3.2 GPA over my second and third years. I was not satisfied with that, and I will not be satisfied with a B/B+ in practice. I know I can do better, for my clients and for myself. Being a good lawyer requires not only skill but perseverance, accountability, and steadiness. To become the great lawyer I want to, I must further elevate my work habits. I work as an LSAT tutor. In addition to coaching the questions, I enjoy helping my tutees—most of whom come to me behind and in disarray—take control of the process and configure a plan of action, not just to study for the test but for their whole application process. I have learned the hard way how much better it feels to be on top of things, and the difference it makes.

I am a better law clerk than I was a law student. In school only I suffered consequences, but now our clients' interests are at stake, and that solemn responsibility drives me to give my best much more than getting good grades did. I take real satisfaction, and pride, in helping other people. I find it easier to apply myself to real-word problems than purely academic exercises. I have been doing solid work at the Squires Law firm for the last year and a half. I work hard, fighting for our clients. I hold myself to high standards with every research assignment and motion. I strive to think outside the box and always find a solution, even when the law seems against us. I am fully aware that I have a weakness that must be actively managed and that I must hone certain skills in order to reach my potential, but I am at a reasonable level. I look forward to being a credit to the Bar and continuing to grow as a lawyer as I serve the people of Arizona.

Dated this 19th day of October, 2025

A handwritten signature in black ink, appearing to read 'David G. Nimer', is written over a horizontal line.

David G. Nimer